

[SAC, ¶ 5 (bold added).]

Plaintiff alleges he was the owner of the mobile home and the lessee of the slot at 6241 Warner Ave. #120. Plaintiff purchased the mobile home at that location for \$175,000 on 4/9/22. [SAC, ¶ 15.]

Plaintiff alleges he Defendant obtained a default unlawful detainer judgment against others. Plaintiff was not named or served. Nonetheless, Defendant repeatedly told him no longer had a right to sell it. [SAC, ¶¶ 16-18.]

Previously, Plaintiff alleged that on 7/12/24, he filed a civil complaint (Case No. 30-2024-01413277) against Sea 20 Aim Mobile Home Park for wrongful eviction and interference with property rights. [FAC, ¶ 11.]

Plaintiff now alleges a number of times he obtained a buyer but Defendant would not approve the sale. And when Plaintiff was in escrow with a buyer, Defendant's counsel told him Defendant would not approve the buyer's lease application unless Plaintiff dismissed his case. [SAC, ¶¶ 19-27.] Plaintiff alleges this statement was "false, coercive, material, and made with intent to force Plaintiff to surrender litigation rights." [*Id.*, ¶ 28.]

On 9/19/24, under direct pressure and financial duress, Plaintiff signed a dismissal with prejudice. [SAC, ¶¶ 29-30.]

Despite Plaintiff complying with its demands, ARC delayed buyer approval and Plaintiff was forced to sell the mobile home as a "pull out" at the reduced price of \$46,000 rather than the \$221,000 it was worth with the slot. [*Id.*, ¶ 31.]

Plaintiff alleges that this action is intended to assert a different primary right than the one involved in Case No. 30 2024 01413277. [SAC, ¶ 33.] "The primary right at issue in this action is Plaintiff's right to be free from extrinsic fraud, coercion, and economic duress in connection with litigation and settlement decisions." [*Id.*, ¶ 35.] "This action does not seek to relitigate the issues raised in the prior case, **but instead seeks damages for Defendants' fraudulent procurement of Plaintiff's September 19, 2024 dismissal.**" [*Id.*, ¶ 37 (bold added).]

According to documents for which Defendant seeks judicial notice, on 7/12/24 Plaintiff filed a complaint alleging that Defendant was illegally blocking him from selling his property and on 9/19/24 dismissed that action with prejudice. [RJN (ROA #119), Exs. A and